



IMEC-Customer Agreement for access to TSMC 65nm technology

BETWEEN

Interuniversitair Micro-Electronica Centrum vzw (IMEC), with its registered office at Kapeldreef 75, 3001 Leuven, Belgium, Register of Legal Entities Leuven VAT BE 0425.260.668, represented by Steve Beckers, Vice President

Hereinafter referred to as 'IMEC';

AND

Name Company/Institute Imperial College London

Department : Electrical & Electronic Engineering

Address : Exhibition Road

City : London Zip : SW7 2BT

Hereinafter referred to as 'Customer';

RECITALS

Whereas Customer, for preparing its product designs, desires to use TSMC's (Taiwan Semiconductor Manufacturing Company Limited, having its principle office located at No. 8, Li-Hsin Rd., 6, Science Based Industrial Park, Hsin-Chu, Taiwan, ROC) proprietary information in order to be able to have such designs taped-out to TSMC for prototyping and manufacturing on the 65nm technology node;

Whereas, prior to the execution of this Agreement, Customer has requested access to TSMC's proprietary information by returning to IMEC the 'Request for Access to TSMC Technology through EUROPRACTICE -IMEC' form.

Whereas IMEC, subject to TSMC's prior approval of the request mentioned above, shall be free to disclose certain of TSMC's proprietary information to Customer in order to enable Customer to prepare

his product designs and to have such designs manufactured by TSMC, subject to non-disclosure and limited-use obligations imposed by TSMC;

Whereas Customer acknowledges the proprietary and confidential nature of TSMC's information and agrees to be bound by confidentiality obligations towards TSMC as well as towards IMEC in relation thereof;

Whereas Parties, by means of this Agreement, wish to set forth their rights and obligations relating to the intended information exchange;

Whereas, if and when Parties, following the exchange of TSMC's proprietary information, decide to continue their collaboration by means of services ordered by and provided to Customer, they shall lay down their mutual rights and obligations related to such services by means of a purchase order combined with terms and conditions applicable at such time;

THEREFORE, the Parties have agreed to the following:

Article 0: Definition of Confidential Information; Exclusivity

- 0.1 TSMC Confidential Information or TSMC proprietary information shall mean any TSMC 65nm information or document identified or labeled as proprietary or confidential by TSMC.
- 0.2 For as long Customer's employees and students (to the extent applicable) are actively involved in research, prototyping or manufacturing activities of Customer which grant access to TSMC proprietary or Confidential Information, such employees and students may not engage in any research, prototyping and/or manufacturing activities on the 65nm technology node or smaller with any company with semiconductor wafer manufacturing capability other than TSMC. This Section 0.2 shall not preclude employees of Educational Institution Customers from their usual teaching activities to the extent such usual teaching activities contain material of companies with semiconductor wafer manufacturing capability other than TSMC.

Article 1: Exchange of TSMC's proprietary information.

- 1.1. Subject to TSMC's approval of Customer's request to access TSMC's proprietary information as mentioned above, IMEC shall furnish to Customer TSMC's proprietary information necessary for Customer to prepare his product designs and to be able to have such designs prototyped and manufactured by TSMC.
Such information shall be furnished to Customer in writing or, if applicable, via the EURO PRACTICE-online website (<http://www.europractice-online.be>).
Customer agrees that all information and data provided to Customer by IMEC pursuant to this Agreement, either in writing or via the EURO PRACTICE-online website, shall be considered as 'Confidential Information' subject to the provisions set forth by article 2.
Customer understands and agrees that the implementation of this Agreement and all of IMEC's obligations in relation thereto, is subject to TSMC's prior approval of Customer's request to access TSMC's proprietary information. In case of refusal by TSMC to grant such access to Customer, this Agreement shall be considered null and void.

Article 2: Confidentiality obligations

- 2.1. Customer agrees and warrants that the Confidential Information shall not be distributed, disclosed or disseminated in any way or form to anyone, except to Customer's employees who have a need to know the Confidential Information within the frame of this Agreement and who are bound by confidentiality obligations at least as stringent as the ones provided for by this Agreement.

Educational Institution Customer's (e.g. universities or research institutes) accounts shall be determined per each professor or research leader. Such Customer agrees and warrants that the Confidential Information shall not be distributed, disclosed or disseminated in any way or form to anyone, except to its research staff or students who are involved in projects utilizing the Confidential Information received under this Agreement, who are bound by confidentiality obligations at least as stringent as the ones provided for by this Agreement and who have returned to IMEC a signed copy of the 'Statement of Confidentiality' set forth by Annex 1.

By way of example only, Customer shall comply with and ensure compliance of his employees and students (to the extent applicable) with, in particular but not limited to, the following best practices:

1. Markings on the Confidential Information indicating the confidential nature of the Confidential Information shall not be removed.
 2. Confidential Information shall not be transferred through a computer network without using state of the art encryption technologies.
 3. Confidential Information shall not be stored on or copied to any stand-alone media, e.g. flash-drives, CDs, DVDs, external hard drives, MP3 players, tapes, memory cards.
 4. Confidential Information shall not be stored on or copied to portable computers, by way of example only: laptops, netbooks, PDAs, smart phones
 5. Confidential Information will be stored password protected, using state of the art encryption in order to prevent access of any third parties and/or unauthorized personnel of Customer.
 6. Access logs for the Confidential Information shall be kept for at least five years from the day of access and be made available to IMEC and/or TSMC for auditing purposes upon request.
 7. Confidential Information may only be stored on computer equipment owned by Customer.
 8. Hardcopies of Confidential Information shall be locked in drawers or closets at all times they are not being used by authorized personnel of Customer,
- 2.2. Customer agrees and warrants that the Confidential Information shall only be used for the purpose of preparing his product designs and to be able to have such designs prototyped and manufactured by TSMC utilizing the technology as specified in the submitted and approved "Request for Access to TSMC Technology".
- 2.3. The Confidential Information shall be destroyed or returned to IMEC, along with all copies in Customer's possession, upon the effective date of the expiration of this Agreement or upon IMEC's request, whichever occurs the first, together with a written certification by Customer that all of the Confidential Information stored in any kind of tangible or in-tangible form in

Customer's possession or under Customer's control, and all related documentation and all copies thereof in whole or in part, are no longer in use by Customer and have been destroyed or returned to IMEC.

- 2.4. Customer acknowledges the proprietary nature of TSMC's technology. Therefore, Customer commits that, unless obtaining TSMC's prior written licenses, Customer shall never enter into any agreement with a manufacturer different from TSMC to have products incorporating the Confidential Information made.
- 2.5. Without prejudice to IMEC's rights under this Agreement, Customers hereby provides to TSMC the right to directly claim against Customer for any breach under this Agreement related to Customer's confidentiality and limited-use obligations set forth by article 2.1-2.3 and/or the provisions set forth by article 2.4.
Customer shall also hold IMEC harmless from any damages, costs or losses, direct and/or indirect, resulting from any claim directed by TSMC towards IMEC related to any breach of confidentiality, unauthorized use of the Confidential information and/or any breach of the provisions set forth by article 2.4. by Customer, its employees, research staff or students.

Article 3: Term and termination

- 3.1. This Agreement shall be effective as of the date of its last signature by duly authorized representatives of the Parties and shall continue to remain in effect for perpetuity until and unless all TSMC proprietary or Confidential Information has been returned or destroyed pursuant to Section 2.3.

Article 4: Miscellaneous

- 4.1. Customer is aware that his identity, as well as information relating to the progress of design and development of his products utilizing the Confidential Information shall be furnished to TSMC by IMEC upon TSMC's request and agrees to such information exchange.
- 4.2. THE CONFIDENTIAL INFORMATION IS FURNISHED TO CUSTOMER ON AN 'AS IS' BASIS, WITHOUT ANY WARRANTY OF ANY KIND, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PARTICULAR PURPOSE. IMEC DOES NOT WARRANT THAT THE USE OF THE CONFIDENTIAL INFORMATION SHALL NOT INFRINGE ANY PATENT OR THIRD PARTY RIGHT AND IMEC SHALL NOT BE HELD LIABLE FOR ANY DAMAGES TO CUSTOMER, ITS EMPLOYEES, RESEARCH STAFF, STUDENTS OR OTHER THIRD PARTY RESULTING FROM THE USE OF THE CONFIDENTIAL INFORMATION FURNISHED TO CUSTOMER.
- 4.3. The partial or complete invalidity of any of the clauses or provisions set forth by this Agreement will not result in the invalidity of the Agreement itself. Any partially or completely invalid clause or provision shall automatically be substituted by a valid clause or provision concurring with the original intention of the Parties.

- 4.4. Consent by either Party to, or waiver of any breach of any clause or provision of this Agreement by the other Party, whether express or implied, shall not constitute a consent to, waiver of, or excuse relating to any other different or subsequent breach.
- 4.5. No patent, copyright, trademark or other proprietary right or license is granted under this Agreement.
- 4.6. Neither Party shall assign any of its rights, duties or obligations under this Agreement without the prior writing consent of the other Party.
- 4.7. This Agreement shall be construed and interpreted in accordance with Belgian Law. All disputes arising in connection with this Agreement shall first be discussed in good faith between Parties in order to try to find an amicable solution. If no such solution can be found within 45 days following notice to the defaulting Party, the dispute will be submitted to the courts of Leuven, Belgium.

Done in two (2) copies, one (1) for each Party,

On behalf of IMEC

Steve Beckers
Vice President

On behalf of Customer

Name of authorized person(s)

Signature

Date :

Signature(s)

Date :

Additional info to open up download access

(only for permanent staff members, no student/generic/private accounts allowed):

Name :

Email :

Tel :

Fax :

Europpractice member ref number (if new, IMEC will fill in) :

ANNEX 1

Statement of Confidentiality

(Signed by each student or research staff that receives any TSMC information)

Europpractice member ref number : A13480

Technology : 65nm TSMC

START date to get access to the technology :

(please fill in Start date when the person starts to get access)

END date to get access to the technology :

(please fill a new annex1 and fill in END date when the person stops to get access)

To: Imperial College London

(Educational Institution Customer's name)

I hereby acknowledge that I will have access to certain technical documents of Taiwan Semiconductor Manufacturing Company Limited ("TSMC") supplied through IMEC to Imperial College London

(Educational Institution Customer's name – same as above)

and thereafter released to me (the "Confidential Information"). I will keep all the Confidential Information in strict confidence and shall use the Confidential Information exclusively for preparing products designs and tape-out such designs to TSMC. I will not release the Confidential Information to any third parties and will protect the Confidential Information from any misappropriation or unauthorized use by any third party by using no less than a reasonable degree of care. My obligation to keep the Confidential Information in strict confidence includes, but is not limited to the following obligations:

1. For as long as I am actively involved in research, prototyping and/or manufacturing activities which give me access to Confidential Information, I will not engage in any research, prototyping and/or manufacturing activities on the 65nm technology node or smaller with any company with semiconductor wafer manufacturing capability other than TSMC.
2. I will not remove any markings on the Confidential Information indicating the confidential nature of such Confidential Information.
3. I will not transfer the Confidential Information through a computer network without using state of the art encryption technologies.
4. I will not store or make copies of Confidential Information on any stand-alone media, e.g. flash-drives, CDs, DVDs, external hard drives, MP3 players, tapes, memory cards.

5. I will not store or make copies of Confidential Information on portable computers, by way of example only: laptops, netbooks, PDAs, smart phones
6. Electronically stored Confidential Information will be stored, using state of the art encryption in order to prevent access to others.
7. I will not store Confidential Information on any media not owned by the university, i.e. in particular but not limited to: I will not make copies on personally owned media/equipment.
8. I will lock hardcopies of Confidential Information at all times when I am not working with them in drawers or closets.

I also agree that, in the event I breach any terms under this Statement, TSMC may claim against me directly.

By _____(signature)

Name:

ID, Social Security or Passport Number: (CID:)

Date:

Witness

By _____(signature)

Name: Peter YK Cheung

Title: Professor

Date: 1st October 2025

Note: The Witness must be a faculty member of Educational Institution Customer if the person signing this Statement is a student. If the person signing this Statement is a faculty member of Educational Institution Customer, the Witness shall be another faculty member.

Please send the ANNEX 1 in PDF format to mpc@imec.be, attn Wendy Fannes